

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Robert E. Blackburn**

Date: August 4, 2014

Deputy Clerk: Emily Seamon / Robert R. Keech
Court Reporter: Tracy Weir

Civil Action No. 11-cv-01765-REB-BNB

Parties:

YAO-HUNG HUANG, and
BIG TIME AUTO PARTS
MANUFACTURING, INC. a Taiwan
corporation,

Plaintiffs,

v.

MARKLYN GROUP INC, a Canadian
corporation, d/b/a Alpena,

Defendant.

Counsel:

Aaron Bradford
Alexander Clayden

James Jablonski

COURTROOM MINUTES

Trial to Jury - Day One

8:39 a.m. Court in session.

Case called. Plaintiff is present; also seated at defendant's table is John Philipps, company representative.

Discussion regarding the status of functionality, the question of inequitable conduct and how that will be addressed during the trial, plaintiffs' pending motion in limine, two stipulated jury instructions regarding design patents, the sequestration of witnesses, and a Richardson instruction.

ORDERED: Defendant's request to allow witnesses Cheryl Philipps and Gabor Kiss to remain in the courtroom during expert testimony is **DENIED as untimely.**

8:47 a.m. Court in recess.

9:10 a.m. Court in session.

Jury panel is present; 15 jurors are seated in the jury box prior to the court calling the case.

9:12 a.m. Civil voir dire oath given to jury panel.

Opening statements by the court.

9:15 a.m. Mr. Bradford introduces himself, Mr. Clayden, the plaintiff, interpreter, and paralegal.

9:16 a.m. Mr. Jablonski introduces himself, the company representative, paralegal, and witnesses.

9:17 a.m. Court introduces court staff.

Further statements by the court.

9:36 a.m. Voir dire by court commences.

10:19 a.m. Voir dire by Mr. Bradford.

Court advises panel of jurors regarding admonitions of trial during the break.

10:24 a.m. Court in recess.

10:37 a.m. Court in session.

Jury panel is present.

10:37 a.m. Voir dire by Mr. Bradford continues.

10:59 a.m. Voir dire by Mr. Jablonski.

Challenges for Cause by the Court:

1. 100252915

Peremptory Challenges by Plaintiff:

1. 100277415
2. 100255764
3. 100264174

Peremptory Challenges by Defendant:

1. 100263660
2. 100249810
3. 100275240

11:35 a.m. Civil jury oath administered.

Nine Jurors Sworn to Try the Case:

1. #100256275
2. #100241493
3. #100267430
4. #100268264
5. #100254218
6. #100262433
7. #100259945
8. #100244910
9. #100272014

Courtroom deputy clerk distributes the Juror Code of Conduct to jurors and parties.
Court reviews same with the jury.

11:42 a.m. Jury excused.

Discussion regarding a statement of the claims and defenses.

11:43 a.m. Court in recess.

1:04 p.m. Court in session.

1:07 p.m. Jury present.

Court gives preliminary jury instructions.

Court's sequestration order is in effect.

1:32 p.m. Opening statement by Mr. Bradford.

2:07 p.m. Opening statement by Mr. Jablonski.

Exhibits Admitted: All exhibits marked on the Parties' Joint Exhibit List as stipulated.

Court reads facts agreed and stipulated to by the parties.

Plaintiffs' witness, John Cheng, sworn.

2:49 p.m. Direct examination of Mr. Cheng by Mr. Bradford.

3:01 p.m. Court in recess.

3:17 p.m. Court in session.

Jury present.

Continued direct examination of Mr. Cheng by Mr. Bradford.

Exhibits Identified: 77, 93, 94, 1

Exhibits 77, 93, 94 are RECEIVED.

3:40 p.m. Bench conference and Mr. Jablonski is admonished for failure to comply with courtroom etiquette.

3:41 p.m. Voir dire of Mr. Cheng by Mr. Jablonski.

Exhibits Identified: 69, deposition of John Cheng (5/28/14) for purposes of impeachment

3:54 p.m. Continued direct examination of Mr. Cheng by Mr. Bradford.

Exhibits Identified: 69, 108, 101, 102, 103, 104, 43, 44, 173, 182

Exhibits 108, 102 (demonstrative), 103 (demonstrative), 104 (demonstrative) RECEIVED.

Witness tendered as an expert.

Court advises jurors regarding admonitions of trial. Trial will resume on **Tuesday, August 5, 2014, at 8:30 a.m.**

4:56 p.m. Jury excused for the evening.

Court's remarks to counsel regarding protocol during trial.

4:58 p.m. Court in recess.

Total time in court: 6:06

Trial continued.